

Addendum Date: July 17, 2026

Emory Woods Apartments Ltd

☐ as Owner of ☒ as Agent for the Owner of Emory Woods

Emory Woods ["Community Name"] enters into this Construction and Noise Disturbance

Addendum to the Apartment Rental Contract ("Lease") with Resident pertaining to Apt. No. 10 located at

2057 Powell Lane, Decatur, GA 30033 [Address] with

Abigail Eum

_____, ["Resident"].

This addendum is part of the Apartment Rental Agreement dated July 15, 2026 [Date of Lease]. If any terms of the Lease and this Addendum conflict, then the terms of this Addendum shall control. This Addendum is incorporated by reference into the Apartment Rental Contract.

1. Definitions. The term "Resident" includes all Residents who have signed this addendum and any child, minor, person, or occupant of which the Resident is the parent or legal guardian. The term "Owner" refers to the apartment ownership entity. If this addendum is signed by the Owner, then the Owner is also referred to as "Management." If this addendum is signed by the company or persons managing the apartment community on behalf of and as the agent for the Owner, then "Management" refers to the managing agent of the owner. The terms "Owner" and "Management" include their respective general and limited partners, officers, directors, agents, employees, and shareholders or members. "Common areas" include all areas outside of resident's apartment, including but not limited to, all hallways, fitness center, pools, walkways, leasing office, and all other areas and amenities located on the property that does not include the Resident's living space inside their apartment.

2. Purpose and Acknowledgment. This Addendum releases Owner and Management from all claims arising out of the repairs, improvements, construction, renovations, or noise by any other person, including but not limited to, other tenants, contractors, construction work, deliveries, or any other third party in a resident's apartment, on the apartment community, or in the Common areas. Resident acknowledges that the apartment community, including but not limited to, the Common areas and amenities, may currently or in the future be under construction, or in need of repair, renovations, or improvement. Any repairs, renovation, improvements, construction, or noise emanating by any contractor, resident, and/or any third-party at the apartment community, inside a resident's apartment, or in the common areas is not actionable or considered a nuisance or a breach of contract pursuant to the Apartment Rental Contract. If construction is ongoing on or near the apartment community or in the common areas, Resident agrees that Owner and Management do not guaranty completion on a set date and time, and Owner and Management is under no obligation to complete any repairs, improvements, construction, or renovations on the property on a set date and time.

Resident acknowledges and agrees that the Resident's apartment, apartment community and the common areas may be under repair, renovation, improvement, or construction at the property causing their use to either be limited or not available.

Resident agrees that he or she did not lease any portion of the *common areas* of the apartment community; accepted the common areas and amenities as-is; and, only leased the apartment itself. Resident's use of the common areas and amenities of the apartment community is a permissive license incidental to leasing the apartment to use the common areas as provided in the lease and community rules and other addenda. The waiver and release of liability in this paragraph does not apply to the owner or occupier of land's duties and liability under Georgia landlord and tenant law that apply *in the apartment*, as opposed to the *common areas*.

3. Construction Areas. Resident agrees not to enter into any construction area where repairs, renovations, improvements, or construction is being performed. By doing so, Residents assumes the risk of all liability. Entry into any construction area where repairs, renovations, improvements, or construction is being performed shall be a material breach of the lease and subject resident to immediate termination of the lease.

4. Acknowledgment of Noise and Disturbances. Resident acknowledges that repairs, renovations, improvements, or construction at or near the property may create noise or other disturbances that may be an inconvenience to Resident, Resident's occupants, social guests, visitors, or invitees. These inconveniences do not excuse Resident from the obligation to pay rent, nor do they create a claim or cause of action for diminution in value, breach of lease, constructive eviction, negligence, nuisance, or any other claim whatsoever against Owner or Management.

Resident also acknowledges that other residents in the apartment community may create noise or other disturbances that may also be an inconvenience to Resident, Resident's occupants, social guests, visitors, or invitees. These inconveniences do not excuse Resident from the obligation to pay rent, nor do they create a claim or cause of action for diminution in value, breach of contract, constructive eviction, negligence, nuisance, or any other claim whatsoever against Management or the Owner. Resident agrees to look solely to the disturbing resident and not the Owner or Management.

5. **Release.** Resident agrees to waive, release, hold harmless, and forever discharge, Management and the Owner from any loss, damages, liability, or claims related to Resident's inability to use and access the common areas due to repairs, renovations, improvement, or construction on or near the apartment community, including but not limited to all noise and disturbances that arise out of repairs, renovations, improvements or construction in the apartment community. This release also includes, but is not limited to, all noise and disturbances that may occur from other residents in or around the apartment community. Resident agrees to look solely to the other resident who is creating noise or the disturbance and not the Owner or Management.

If Resident is disturbed due to noise or other disturbances from repairs, renovations, improvements, or construction on or near the apartment community, including but not limited to the common areas, or caused by another resident or third-party in the apartment community, Resident agrees that he or she is not entitled to any offset for any rental obligations, or other compensation, nor shall it be the basis for any other claim or cause of action, including but not limited to diminution in value, breach of contract, constructive eviction, negligence, nuisance, or any other claim whatsoever against the Owner or Management.

Resident covenants not to sue and acknowledges, understands, and agrees to forever waive, and release Owner and Management, its agents, owners, successors, and employees from any and all claims, including but not limited to diminution in value, breach of contract, nuisance, constructive eviction, any claim in tort, and any right to withhold rent due to the inconvenience or disturbances due to all noise, smells, or lights, including but not limited to, repairs, improvement, renovations, construction, emanating from the surrounding area or Apartment Community that disturbs the resident's quiet enjoyment of the Leased Premises, or access to Common Areas. Resident understands and agrees that this includes, but is not limited to, any noise, smells, lights, frequent resident/public events, restaurant and retailer deliveries as well as frequent trash hauling throughout the day, cooking smells, lights from parking deck and pool deck, noise from other residents, all disturbances from public access in and out of the Community, and all other disturbances that could be considered anything to disturb the Resident for any reason whatsoever.

6. **Delay of Occupancy Due to Construction, Renovation or Repair.** Resident acknowledges that the apartment may be delayed for occupancy due to repairs, renovations, improvements, or construction of the apartment, including but not limited to, the apartment or common areas. If there is a delay in delivering possession then paragraph No. 2 of the Apartment Rental Contract under Possession shall control with regards to when rent will commence.

Residents knowingly and voluntarily accepts the risks of any delay and the apartment not being ready for occupancy on the commencement date of the Apartment Rental Contract. Resident agrees that if the apartment is not ready on the commencement date of the lease due to repair, improvements, renovations, or construction it shall not constitute a willful failure to deliver possession. Resident waives, releases, and forever discharges Owner and Management from all claims, actions, or cause of action against Owner and Management relating to delays in delivering possession of the apartment.

7. **Relocation.** Resident agrees to transfer to another comparable apartment that is not affected by repairs, renovations, improvements, or construction in or around Resident's apartment if deemed necessary by the Owner or Management in their sole discretion. In the event Resident is required to transfer to another apartment, the payment of rent shall remain in full force and effect without abatement.
8. **Merger of All Prior Statements.** All prior statements, representations or agreements pertaining to the repairs, improvements, renovations, and construction and relating to noise shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Residential Lease Contract.
9. **Any Portion of Addendum Found to Be Void or Unenforceable To Be Severed and Remainder Enforced.** If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under Georgia law, then such void or unenforceable phrase, sentence, portion, provision, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall still be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

Management:

Emory Woods Apartments Ltd

Name of Owner or Management Company

By: _____
Signature of Owner or Management Company Representative

As: _____
Title of Owner or Management Company Representative Signing

Resident or Residents:

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

